

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

QVC, INC. AND CORNERSTONE BRANDS, INC., *Complainants*

v.

OCEAN NETWORK EXPRESS PTE. LTD., *Respondent*.

DOCKET NO. 25-09

Serviced: June 17, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER GRANTING THIRD JOINT MOTION TO EXTEND DEADLINES

On June 15, 2026, the parties filed a Joint Status Report and Third Motion to Extend Deadlines seeking an extension of approximately one month of the current discovery and briefing deadlines (“Joint Report”) (Dkt. 27). Because the parties indicated in their May 15, 2026, joint status report that additional time may be necessary to complete discovery, the current scheduling order directed the parties to file a Joint Status Report regarding discovery no later than June 15, 2026, which the parties complied with. The stated impediments to discovery include the exceptionally large volume of responsive documents identified, the need for the parties to identify, review and produce a large quantity of ESI requiring the use of third-party vendors to collect, search, and host data, the fact that both witnesses and documents are located in foreign countries, the fact that certain documents are in the possession of non-parties, and the need for the parties to depose a total of 21 fact witnesses. The Joint Report details the discovery conducted to date, identifies the remaining discovery not yet completed, and states that the current schedule would not allow the parties sufficient time to prepare their claims and defenses. For the reasons set forth below, the joint motion to extend deadlines is **GRANTED**, and the parties are directed to follow the amended schedule in this order.

In their Joint Report, the parties state that:

- Complainants have substantially completed production of documents. Complainants made an initial production of 13,367 documents to Respondent on March 6, 2026. Complainants plan to make a supplemental production of under 1,500 documents to Respondent this week, and are in the process of preparing a privilege log. (Joint Report at 2.)
- Respondent has also worked diligently with its data vendor to ensure that documents are ready for collection, review, and production to Complainants. Respondent has continued to meet with its vendor on a weekly basis to discuss review data for production. As previously reported, Respondent completed an initial search to identify over 850,000 potentially responsive documents collected

from selected custodians and electronic files. On March 26, 2026, Respondent produced 1,613 documents to Complainants. A second set of 646 documents was produced to Complainants on May 11, 2026, and a third set of 3,658 documents on June 5, 2026. Respondent is currently finalizing quality control on two additional productions of documents totaling roughly 12,000 documents. One production was scheduled to be released for production on June 16, 2026, and a second production by Thursday June 18, 2026. At that point in time Respondent expects its production of documents to be substantially completed. (Joint Report at 2-3.)

- Respondent is still expecting to continue to produce smaller sets of documents requiring redactions on a rolling basis. These types of documents are not specific to Complainants. The total amount of documents potentially requiring redaction prior to production is larger than originally expected at 56,000 documents. (Joint Report at 3.)
- Once those productions are completed, the Parties will still need the time to review the voluminous batches of document productions and prepare to take potentially numerous depositions. Respondent notes that, at this point in time, Complainant has identified 10 potential fact witness in its initial disclosure and response to discovery demands. Respondent has identified 11 potential ONE employees that may be called as fact witnesses. (Joint Report at 3.)
- An extension of the deadlines is necessary to allow the parties a fair opportunity to review and conclude their respective production of documents, review such productions from the opposing party or third parties, depose each other's respective fact and expert witnesses, and assess any additional discovery. The parties will attempt to avoid requesting further extensions and, to the extent motions are needed, will raise them promptly and, where possible, file them jointly. (Joint Report at 8.)

Based on the representations in the joint motion to extend deadlines, I find that the parties have established good cause to modify the schedule as requested. The record shows that that the parties have worked diligently to conduct discovery in a complex and document intensive proceeding requiring extensive production of ESI and document review for responsiveness, confidentiality, and privilege. It also shows that counsel have worked diligently to meet existing deadlines. Given this history of working diligently to comply with established deadlines, counsel's stated need for additional time must be viewed in the context of the diligence they have demonstrated to date. Moreover, the extension of approximately one month is reasonable given the current status of the case. Counsel are directed to continue to cooperate with one another and use their best efforts to avoid the necessity of additional extension requests. The parties are hereby **ORDERED** to follow this schedule:

Event	Deadline
Substantial completion of productions of documents and ESI in response to initial RFPs	06/30/2026
Joint Status Report 3 regarding discovery	07/15/2026
Complete depositions of fact witnesses	08/10/2026
Last day to serve interrogatories, requests for admission, and RFPs	08/10/2026
Joint Status Report 4 regarding discovery	08/31/2026
Disclosure of initial expert reports, if any	09/22/2026
Disclosure of rebuttal expert reports, if any	10/07/2026
Last day to respond to interrogatories, requests for admission, and RFPs	10/14/2026
Close of fact discovery	10/14/2026
Complete expert depositions and all discovery	10/28/2026
Complainant's initial brief, proposed findings of fact, and appendix	11/30/2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	12/30/2026
Complainant's reply and responses to proposed findings of fact	01/13/2027

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth*

Recreations, Inc., 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically meet other deadlines in the proceeding. If a motion could impact on other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

MARY A. HERVEY -S

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Mary Apostolakos Hervey
Administrative Law Judge